

Writ Petition No. 14433 of 2022

Pakistan Mobile Communications Limited (PMCL). **Versus** Ex-Officio Justice of Peace and 06 others.

S.No. of order/proceeding.	Date of order/proceeding.	Order with signatures of Judge, and that of parties or counsel, where necessary.
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09.10.2025. Rao Muhammad Akram Khuram and Ch. Zia ur Rehman, Advocates.
Mr.Usama Bahadar, Advocate for respondent No.5.
Mr. Arshad Pervez Qureshi, Assistant Advocate General with Muhammad Kazim, A.S.I.

By filing this petition under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973, an order dated 12.09.2022, passed by respondent No.1 (Ex-Officio Justice of Peace/Additional Sessions Judge, Kot Addu), has been assailed.

2. Actual and factual background of the matter in hand is that respondent No.5 (Syed Ghulam Shabbir Abbas Rizvi, Advocate) instituted an application under Sections 22-A/22-B of Cr.P.C. before respondent No.1 (Ex-Officio Justice of Peace/Additional Sessions Judge, Kot Addu) with the averments that he was president Kot Addu Bar Association and signals of Mobilink company (Pakistan Mobile Communication Limited) are very weak in the court premises; he submitted multiple applications against the said cellular company for the improvements of quality of the service, but of no avail.

3. Respondent No.1, through the impugned order, issued the following direction to the telecommunication companies:-

“As such in the interest of justice, all the cellular companies are directed to install micro antenas/repeaters on their towers within fifteen days failing which Managers of the respondents companies shall be proceeded for willful disobedience of orders of this Court. Notice be issued to the Chief Executive Officers of all the respondents companies directing them to attend this Court on next date, which is fixed as 27.09.2022.”

4. Learned counsel for petitioner mainly focused on the points that the said direction issued by respondent No.1 was alien to the provisions of Section 22-A/22-B of Cr.P.C.; even otherwise it was *corm non judice*.

5. Powers of an Ex-Officio Justice of Peace have been described in Section 22-A of Cr.P.C. I think it appropriate to have a look of said provision, which is being produced below for the facility of reference:-

“22-A. Powers of Justices of the Peace: (1) A Justice on the Peace for any local area shall, for the purpose of making an arrest have within such area all the powers of a police officer referred to in section 54 and an officer-in-charge of a police station referred to in section 55.

(2) A Justice of the Peace making an arrest in exercise of any powers under subsection (1) shall, forthwith, take or cause to be taken the person arrested before the officer incharge of the nearest police station and furnish such officer with a report as to the circumstances of the arrest and such officer shall thereupon re-arrest the person.

(3) A Justice of the Peace for any local area shall have powers, within such area, to call upon any member of the police force on duty to aid him.

(a) in taking or preventing the escape of any person who has participated in the commission of any cognizable offence or against whom a reasonable complaint has been made or credible information has been received or a reasonable suspicion exists of his having so participated; and

(b) in the prevention of crime in general and, in particular, in the prevention of a breach of the peace or a disturbance of the public tranquility.

(4) Where a member of the police force on duty has been called upon to render aid under sub-section (3), such call shall be deemed to have been made by a competent authority.

(5) A Justice of the Peace for any local area may, in accordance with such rules as may be made by the Provincial Government:

(a) issue a certificate as to the identity of any person residing within such area, or

(b) verify any document brought before him by any such person, or

(c) attest any such document required by or under any law for the time being in force to be attested by a Magistrate, and until the contrary is proved, any certificate so issued shall be presumed to be correct and any document so verified shall be deemed to be duly verified, and any document so attested shall be deemed to have been as fully attested as if he had been a Magistrate.

(6) An ex-officio justice of the Peace may issue appropriate directions to the police authorities concerned on a complaint regarding

(i) non-registration of criminal case;

(ii) transfer of investigation from one police officer to another; and

(iii) neglect, failure or excess committed by a police authority in relation to its functions and duties.”

6. In our country Sessions Judges and Additional Sessions Judges serve as Ex-Officio Justice of Peace. They are authorized under Section 22-A of Cr.P.C. to address the issues like non-registration of F.I.R., or police misconduct. They can issue certain directions to the police authorities to ensure expeditious and inexpensive justice. Aim of said provision is to provide a faster and less expensive route for the citizens to seek redress from police inaction and misconduct.

7. Ex-Officio Justice of Peace has no authority to issue any direction to any cellular company to install their towers in any area.

8. Grievance agitated by respondent No.5 (Syed Ghulam Shabbir Abbas Rizvi, Advocate) was that signals of cellular companies within the court premises were very weak and not upto the mark, and no improvement in the quality of the service was made by the companies despite of submission of certain applications by him to the concerned quarters.

Said grievance was covered by Pakistan Telecom Consumer Protection Regulations, 2009 (herein after called as Regulations, 2009). Said Regulations were framed by the authority under Section 4 and 5 of Pakistan Telecommunication (Reorganization) Act, 1996. Under the said Regulations, 2009, all the operators are required to entertain complaints of the consumers in relation to any service regarding the misuse of the service, quality of the service, illegal practices, poor services, provision of the services, misleading statements, non-provision of services and mobile number portability related complaints. Operators are bound to establish the complaints handling mechanism.

Aim of the Regulations, 2009 is to protect the rights and interest of consumers of communication services in Pakistan.

9. If any person of the public claims that services provided by cellular companies are not upto the mark, or very poor in any certain area, he may make a complaint under regulation 11 of said Regulations, 2009. If the Operator/Cellular company fails to redress the grievance

of the consumer, or he/consumer is not satisfied by the decision of the operator, he may approach the authority (Consumer Protection Directorate) constituted under the Act, 1996.

10. So far as provision of Section 22-A of Cr.P.C. is concerned, its scope does not extends to cater the said proposition. Impugned order passed by respondent No.1 (Ex-Officio Justice of Peace) was alien and contrary to the said provision. He was not authorize to pass any such like order by any stretch of imagination, as such the order was also “*corum non judice*”.

11. “Corum non judice” means before one who is not a judge or not before a judge. It describes a legal proceedings conducted by a court or a person that lacks the necessary authority or jurisdiction to hear the matter rendering the order/judgment void and without legal standing. For instance if a civil court tries a labour dispute, for which a labour court has been constituted, the order passed by civil court shall be considered to be *corum non judice*.

12. Respondent No.1 (Ex-Officio Justice of Peace) failed to record any reason while passing the impugned order. Section 24-A of General Clauses Act, 1897 is not only applicable to a Judge, but also to every authority, officer or person making an order under the powers conferred by or under any enactment and he is required to assign/record reasons for such order. A cursory and groundless order without assigning reasons could not be considered and treated as legal order.

A judge while performing his duties of judicial dispensation should refrain from passing such like rough orders.

13. For the reasons recorded above, I am of the view that the impugned order was not only illegal/unlawful, but the same was also '*corum non judice*' and ridiculous. I, therefore, accept present petitions and set aside the same.

(TANVEER AHMAD SHEIKH)
JUDGE

APPROVED FOR REPORTING.

JUDGE

Shahzad Ahmad Nasir